



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

Isaac Bears, Council President

AGENDA ITEM

26-161 - Resolution to Approve Council Declaration of Support for Resident or Attorney General Intervention in Chertok v. City of Medford to Ensure Effective Defense of City Ordinances

FULL TEXT AND DESCRIPTION

Whereas, the Medford City Council is the legislative body of the City of Medford and exercises significant authority concerning the approval and appropriation of municipal funds; and

Whereas, the City Council has concerns regarding the legal advice and representation it has received regarding certain litigation, including the ongoing CHERTOK, et al., vs. CITY OF MEDFORD, et al., and the extent to which the City Council's input has been reflected in the City's litigation posture; and

Whereas, the City Council is deeply concerned about the City's present litigation posture in the CHERTOK litigation, including the August 27, 2026 Stipulation requesting entry of permanent injunctive relief against enforcement of an ordinance duly enacted by the City Council; and

Whereas, the City Council believes that the issues presented in the CHERTOK litigation implicate not only Medford's municipal authority and autonomy, but potentially those of municipalities throughout the Commonwealth; and

Whereas, the Mayor and KP Law have neglected to adequately consult the City Council and keep it apprised on the CHERTOK litigation, and the City Council is concerned that the conduct of the Mayor and KP Law in the CHERTOK litigation exposes the city to an acutely increased risk of further litigation and liabilities; now, therefore:

Be it Resolved by the Medford City Council that we, as a body, adopt and execute the Declaration below concerning its position regarding the CHERTOK litigation and authorize its submission to the Court.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

- I. 2026.09.15 - Declaration of Support for Resident or Attorney General Intervention in Chertok v. City of Medford to Ensure Effective Defense of City Or



Medford City Council

Meeting Type: Regular City Council

Meeting Date: 09/15/2026

Paper #: 26- 161

Subject: Declaration in Support of
Intervention in Chertok - v -
City of Medford

Councilor	Yes	No	Absent
Councilor Callahan	✓		
Councilor Leming	✓		
Councilor Mullane	✓		
Councilor Scarpelli		✓	
Councilor Tseng	✓		
Vice President Lazarro	✓		
President Bears	✓		
Totals	6	1	—

Notes:

1st - Bears
2nd - Callahan

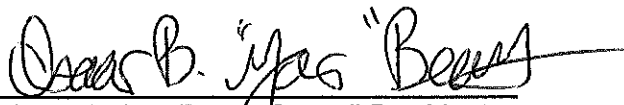
DECLARATION

We, the duly elected City Council of the City of Medford, Massachusetts, declare under penalty of perjury that the following facts are true and correct:

1. While the City Council has provided input and direction to appointed legal counsel on numerous occasions during the CHERTOK litigation, the City Council's input has not in general been reflected in the City's litigation positions, and the Council has continued to have significant concerns regarding the City's posture in this litigation.
2. As of September 10, 2026, the City Council has yet to be officially notified of or consulted regarding the filing of a so-called stipulation in the litigation on August 27, 2026, which appears to request the Courts enter final judgment against the City and enjoin it from enforcing a duly enacted ordinance, neither shown or claimed by the City to be unlawful.
3. In April, Plaintiffs in the CHERTOK case moved for preliminary injunction against the City enforcing or otherwise implementing the ordinance in dispute in the case.
4. The response to the Plaintiffs' motion for preliminary injunction, filed by the appointed legal counsel of the City and against the wishes of the City Council, assented to the injunction against enforcing ordinances duly enacted by the City Council and not shown to be unlawful.
5. The City's response further stated to the Court, in public filing, that the City had intentionally and knowingly raised funds prior to any litigation or notice of litigation in direct violation of the ordinance now in dispute.
6. The City Council believes the stipulation and assenting response to Plaintiffs' motion for preliminary injunction in the CHERTOK litigation reflect the divergence between the City Council's position and the legal position presently being taken on behalf of the City, which in the City Council's view potentially exposes the City to additional and unnecessary risk of litigation and further liabilities.
7. The filed stipulation raises financial concerns as its sole rationale for requesting that the Court force the City into a position in which it would be in violation of its own duly enacted ordinance in the raising of funds and thus exposed to a substantial increased risk of litigation.
8. In particular, the filed stipulation alleges that the City has to date spent \$35,000 dollars in the defense of the CHERTOK litigation.
9. In April, the City Council publicly held a Special Meeting, at the request of the Mayor, in which it voted by overwhelming majority to request that the Mayor allocate no less than \$75,000 to the defense in the CHERTOK litigation.
10. The City Council, as the legislative body of the City of Medford and under the Medford city charter, exercises significant authority concerning the approval and appropriation of municipal funds.
11. Before the August 27 Stipulation was filed, neither the City's appointed counsel nor the Mayor presented the City Council with an accounting of litigation expenses or requested that the City Council consider whether additional funds should be appropriated for the continued defense in the CHERTOK litigation.

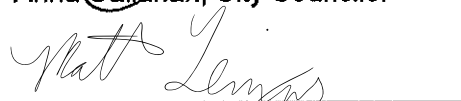
12. Had the City Council been consulted regarding the financial concerns identified in the Stipulation, the City Council would have expressed its view that the approximately \$35,000 in costs identified there did not justify abandoning the defense in the CHERTOK litigation.
13. The City Council remains willing to consider the appropriation of additional funds reasonably necessary to continue defending in the CHERTOK litigation.
14. The City Council supports intervention by the Proposed Intervenors to permit a defense in the CHERTOK litigation to continue and would likewise support participation by the Massachusetts Attorney General in defending the case.

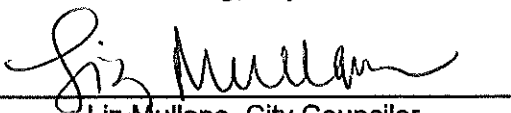
Signed:

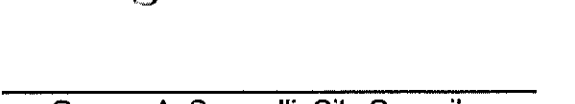

Isaac B. Zac Bears, Council President

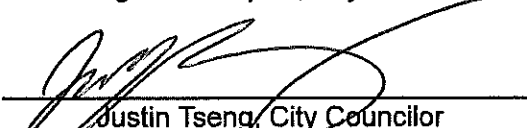

Emily K. Lazzaro, Council Vice President


Anna Callahan, City Councilor


Matt Leming, City Councilor


Liz Mullane, City Councilor


George A. Scarpelli, City Councilor


Justin Tseng, City Councilor

Dated: September 15, 2026